Agreement for the Use of PrivateName Service

Agreement for Use of the Privacy Service
(the "Agreement")

PrivateName Services Inc.,
a British Columbia corporation, with a registered office address of
1201 - 11871 Horseshoe Way, Richmond, British Columbia, Canada, V7A 5H5

1. The PrivateName Service

1.1. PrivateName provides a Whois privacy protection service (the "Privacy Service") which enables certain Whois details for a particular domain name or domain names to be replaced with PrivateName's Whois contact details, in order that a domain name registrant's own contact details are not readily shown in publically available Whois databases, as further particularized herein.

1.2. The Partner wishes to contract with PrivateName for the Partner's use of the Privacy Service on the terms and conditions set out herein.

1.3. PrivateName wishes to provide the Privacy Service to the Partner on the terms and conditions set out herein.

2. Agreement

2.1. In consideration of the agreement of the Partner to offer the Privacy Services to the Partner's Customers in accordance with this Agreement and pursuant to the Fee Schedule, PrivateName hereby agrees to provide the Partner with access to the Privacy Service for its own use and for the use of the Partner's Customers (as defined below), for the duration of the Term of this Agreement, subject to the terms and conditions contained herein.

2.2. The terms, conditions, and provisions set out in the "Terms of Service", attached hereto as **Schedule A**, are incorporated into the Agreement by reference. Any terms or conditions in the Terms of Service which are inconsistent with the terms or conditions herein, shall be subject to the terms and conditions herein which shall have priority.

2.3. A "Customer" shall mean any person and/or entity who registers a domain name through the Partner pursuant to the Partner Contract, and who uses the Privacy Service.

3. Term and Termination of Contract

3.1. This Agreement shall commence on the Effective Date and terminate on the earlier of:
a) Two (2) years from the Effective Date (the "Expiry"); or
b) Upon the termination of the Partner Contract (the "Term").

3.2. Upon the Expiry, the Term shall be automatically extended for an additional two (2) year period unless the Partner Contract has been terminated or unless this Agreement is terminated in accordance with the terms and conditions contained herein (the "Renewed Term"). Upon the conclusion of the Renewed Term, the Renewed Term shall also be automatically renewed for successive additional two (2) year periods for as long as the Partner Contract has not been terminated and for as long as this Agreement has not been terminated in accordance with the terms and conditions contained herein.

3.3. This Agreement may be terminated prior to the Expiry of the Term for any reason by PrivateName, upon providing the Partner with six (6) weeks written notice.

3.4. This Agreement may be terminated prior to the Expiry of the Term for any reason by the Partner, upon providing PrivateName with fourteen (14) days written notice.

3.5. This Agreement may be terminated immediately without any notice by PrivateName, for any breach of the terms and conditions contained in **Schedule A.**

4. Partner's Obligations

4.1. The terms and conditions set out in **Schedule A** attached hereto, shall apply to the provision of the Privacy Service, whether the Privacy Service is used by the Partner or by the Partner's own customers.

4.2. It is a condition of the provision of the Privacy Service, that the Partner and each customer of the Partner who wants to use the Privacy Service, acknowledge and agree to the terms and conditions in the Schedule in a form and manner satisfactory to PrivateName in respect of each domain name that engages the Privacy Service ("Acknowledgement and Agreement"). The evidence of each such Acknowledgement and Agreement shall be recorded by the Partner and transmitted to PrivateName in a format and manner satisfactory to PrivateName.

4.3. **Schedule A** shall be subject to Acknowledgement and Agreement in its entirety, without any amendment or additional terms or conditions whatsoever, unless agreed to in writing between PrivateName and the Partner. Furthermore, the Partner may not purport to apply any additional terms or conditions to the availability of the Privacy Service to itself or to its Customers unless agreed to in writing between PrivateName and the Partner.

4.4. In case of a transfer request by the registrant, the Partner might be obliged to disclose the registrant´s real contact data in order to perform the transfer.

5. Pricing

5.1. Each domain name that engages the Privacy Service will be subject to a service fee in accordance with **Schedule B**, attached hereto, which shall form part of the terms and conditions of this Agreement.

5.2. The Partner may charge its own Customers a service fee that is less or more than the service fees set out in **Schedule B**, however the amounts set out in **Schedule B** are payable to PrivateName regardless of the amount of the Partner's service fees to its own Customers.

5.3. The Partner may collect payment from its Customers in respect of the Privacy Service through any means permitted by its Partner Contract.

5.4. PrivateName will record all domain names which engage the Privacy Service in accordance with the Acknowledgement and Agreement, and charge the Partner in accordance with the **Schedule B**. Any domain names which have been subject to deactivation of the Privacy Service shall be subject to payment in accordance with the **Schedule B**. All payments due to PrivateName under this Agreement shall be made in the manner and as directed by PrivateName.

6. Indemnity and Cap on Liability

The Partner agrees to defend, indemnify and hold PrivateName, its employees, officers, directors, shareholders, agents, affiliates, and assigns, harmless from and against any and all third party claims, damages, liabilities, costs and expenses (including reasonable legal fees and expenses) directly or indirectly arising out of or from or relating to your agreement to engage PrivateName to provide Privacy Services and the provision of Privacy Services hereunder. EXCEPT FOR LIABILITY ARISING FROM GROSS NEGLIGENCE OR WILLFUL MISCONDUCT BY PRIVATENAME, NEITHER PRIVATENAME, ITS EMPLOYEES, OFFICERS, DIRECTORS, SHAREHOLDERS, AGENTS, AFFILIATES, AND ASSIGNS, WILL BE LIABLE FOR ANY LOST REVENUES OR PROFITS OR COSTS OF PROCUREMENT OF SUBSTITUTE SERVICES, OR FOR ANY INDIRECT, SPECIAL, INCIDENTAL, EXEMPLARY, PUNITIVE OR CONSEQUENTIAL DAMAGES, INCLUDING DAMAGES FOR LOSS OF A DOMAIN NAME OR LOSS OF PROFITS, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, INCLUDING BUT NOT LIMITED TO CONTRACT, PRODUCTS LIABILITY, STRICT LIABILITY AND NEGLIGENCE, AND WHETHER OR NOT PRIVATENAME WAS OR SHOULD HAVE BEEN AWARE OR ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. IN NO EVENT WILL PRIVATENAME'S LIABILITY ARISING OUT OF THIS AGREEMENT EXCEED THE NET AMOUNT PAYABLE TO YOU UNDER THIS AGREEMENT.

7. General Provisions

7.1. Each party shall act as an independent contractor of the other and this Agreement will not be construed to create a partnership, joint venture, agency or employment relationship between them. Neither party will have the right or authority to create any obligation or responsibility on the other's behalf or to obligate or bind the other in any respect.

7.2. Neither party shall be liable hereunder by reason of any failure or delay in the performance of its obligations on account of Internet connectivity, server malfunctions, strikes, lock-outs, labour disputes, shortages of materials, riots, insurrection, fires, flood, storm, explosions, earthquakes, hurricanes, blizzards, other acts of God, war, governmental action, or any other cause that is beyond the reasonable control of such party.

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7.3. This Agreement shall be governed by and construed in accordance with the laws of the Province of British Columbia and the laws of Canada applicable therein, and the parties hereby irrevocably and exclusively attorn to the jurisdiction of the courts of British Columbia at Vancouver. Notwithstanding the foregoing, in PrivateName's sole unfettered, and/or arbitrary, discretion, it may require that any such dispute be adjudicated by the courts of the jurisdiction of the Registrar or a Customer of the Registrar.

7.4. Any notice to be given under this Agreement shall be in writing and shall be deemed delivered if delivered by e-mail to the Partner's email address as recorded above, or to PrivateName's office, as recorded above, by registered mail.

7.5. The Partner may not assign this Agreement, in whole or in part, by operation of law or otherwise, without the prior written consent of PrivateName.

7.6. This Agreement and the attached schedules constitute the entire agreement between the parties to this Agreement pertaining to the subject matter hereof and supersede all prior and contemporaneous agreements, understandings, negotiations and discussions, whether oral or written, of the parties and there are no warranties, representations or other agreements between the parties in connection with the subject matter of this Agreement except as specifically set forth herein.

7.7. Any provisions of this Agreement which are or may be rendered invalid, unenforceable or illegal, shall be ineffective only to the extent of such invalidity, unenforceability or illegality, without affecting the validity, enforceability or legality of the remaining provisions of this Agreement, it being the intent and purpose that this Agreement should survive and be valid to the maximum extent permitted by applicable law.

7.8. No consent or waiver, express or implied, by a party of any breach or default by the other party in the performance of such other party of its obligations shall be deemed or construed to be a consent or waiver to or of any other breach or default in the performance by such other party of the same or any other obligations under this Agreement of such other party. Failure on the part of a party to complain of any act or failure to act of another party or to declare another party in default, irrespective of how long such failure continues, shall not constitute a waiver by the first mentioned party of its rights under this Agreement. The remedies specified in this Agreement are in addition to any other remedies that may be available at law or in equity.

This agreement has been read by the authorized representatives of the partner hereto at the place.

Schedule A

Terms of Service of Privacy Service

1. General

(1) The provision of PrivateName's privacy protection services as particularized herein, is provided on the condition that the following terms and conditions are acknowledged and agreed to.

(2) The following terms and conditions shall apply to the use of the Privacy Service provided by PrivateName Services Inc. (hereinafter referred to as PrivateName), by which domain name Registrants ("Registrants") may engage PrivateName to replace the WHOIS data of the domain name(s) registered by the Registrant with PrivateName own contact data, in compliance with the following terms of service (the "PrivateName Service" or the "Privacy Service").

(3) The provision of the PrivateName Service is subject to and conditional upon any conditions or regulations established by the Internet Corporation for Assigned Names and Numbers ("ICANN") and/or any conditions or regulations established by a particular domain name registry.

(4) Registrants may be both corporate bodies and physical persons unless the specific terms and conditions of registry of certain top level domains ("TLDs"), for which a Registrant may wish to use the PrivateName Service, provide for restrictions as to the publication of WHOIS data.

(5) The PrivateName Service is solely available from registrars and/or partners who have contracted with PrivateName (hereinafter referred to as "Partner").

2. Specification of Services

(1) In the WHOIS, partially differing personal data of various so-called contacts including, but not limited to, the Registrant, the "admin contact", as well as the "tech contact", are often published and/or required to be published in a globally accessible way by the registry which enables registration of such domain names. Such data may include, without limitation, the complete name, postal address, phone and fax numbers as well as e-mail addresses. By using the PrivateName Service, this data may be replaced with PrivateName's own contact data, which will then be the data publically accessible in the WHOIS. This service is available in order to lawfully protect the Registrant against any unwanted contact by third parties for an improper purpose.

(2) The PrivateName Service is available for a large number of TLDs, with the proviso that the applicable registration requirements of certain domain name registries may not allow a privacy protection service as provided by PrivateName. Therefore, PrivateName cannot and does not guarantee that the full scope of the PrivateName Service, or any privacy services, will be available for all TLDs.

(3) Third parties may make enquiries to PrivateName about PrivateName privacy Protected Domains ("Protected Domains"):

- in case of phone enquiries about the phone number stored in the WHOIS, third parties will be informed by way of a recorded message that in order to make a contact enquiry, they are required to use the contact form provided at www.privatename.com;
- in case of e-mail enquiries about the e-mail address stored in the WHOIS, third parties will be informed by autoresponder that in order to make a contact enquiry, they are required to use the contact form provided at www.privatename.com;
- any enquiries received by PrivateName via mail at the postal address stored in the WHOIS will be processed according to Section 9;
- any contact enquiries received by PrivateName via the contact form provided at www.privatename.com will be forwarded to the Registrant according to Section 9;
- any other enquiries directly received by Partners will be processed according to Section 9(5).

3. Conclusion of Contract

(1) A Registrant can only activate the PrivateName Service for any particular domain names through one of PrivateName's Partners. In this regard, reference is made to the restrictions set forth in Section 2(2). The PrivateName Service may either be activated directly upon registering a domain name or also subsequently for domains already registered, however in the latter case historical WHOIS information may be available from the period prior to the activation of the Privacy Service.

(2) The original contact data and any other information required from the Registrant by the Partners during the service activation process must be complete and correct. If the service is ordered by a corporate body or other business entity, the physical person authorized to represent the corporate body or other business entity must be stated in addition. Any failure to provide complete and accurate contact data may cause the Privacy Service to be terminated and/or affect the validity or termination of the domain name(s) subject to the Privacy Service.

(3) Registrants shall be solely responsible for ensuring that all persons named by them in the service activation process agree to the transmission of their data to PrivateName, and the Registrant shall agree to the terms and conditions of PrivateName's Privacy Policy.

(4) Registrants may use the name servers provided by PrivateName subject to compliance with all other provisions herein. If Registrants wish they can use their own name servers however Registrants may thereby be identified through their name servers notwithstanding the provision of the Privacy Service.

(5) After submission of all required data by the Partner, PrivateName may review this data for completeness and accuracy however it is under no obligation to do so and shall rely upon the Registrant's representation and warranty as to completeness and accuracy of all such submitted data. If PrivateName, in its sole unfettered discretion, considers the data to be sufficient, the requested PrivateName Service will be activated and the Registrant will be informed accordingly by e-mail to the e-mail address provided upon registration.

(6) Registrants shall be solely responsible for the maintenance of complete and accurate data transmitted according to Section 3(5). Registrants shall be required to keep the domain registration data (including contact data) up-to-date and correct. Should any of the data submitted change while a particular domain name is using the Privacy Service, Registrants shall immediately rectify any such out-of-date or incorrect data, either themselves or through the Partner that they used for ordering the PrivateName Services. In case of Protected Domains, this will not involve any change in the WHOIS data provided as part of the Privacy Service.

(7) PrivateName reserves the right to conduct audits of the data provided by Registrants at any time at its sole unfettered discretion, to ensure accuracy and completeness.

4. Registrant's Obligations

(1) By ordering PrivateName Services for specific domains, Registrants expressly warrant that the domain(s) concerned do not and shall not infringe upon any third parties' rights nor does the registration and/or use of any such domain names constitute a breach or violation of any international, national or local laws, regulations, rules, policies, or the Terms of Service. Registrants further warrant that they are entitled to order the PrivateName Services under any laws, regulations, rules, policies, and the Terms of Service.

(2) Without limiting the generality of the foregoing, any registration or use of a domain name, including but not limited to use in association with a website, ftp site, or email by the Registrant or by any other party so long as the domain name is subject to the Privacy Services, shall not breach any of the following prohibitions:

- Transmission or storage of any information, data or material in violation of any international, national, or local law or regulation. This includes but is not limited to material protected by copyright, trademark, patent, or any other statute and threatening, harmful, obscene or illegal material. Hacking, cracking, phishing, password distribution, pornographic, and warez sites are not permitted. Use of distribution lists via unsolicited E-mail or other mass E-mail services are not permitted.
- advertising any illegal products and/or services;
- spamming, hacking, DoS attacks, DDoS attacks, DRDoS attacks;
- defamation, child pornography, zoophilia/bestiality and other illegal pornographic material;
- Transmission or storage of Nazi propaganda, Holocaust denial, or any contents likely to incite racial hatred; as well as without limitation, aiding or abetting any of the above listed prohibited uses.

5. Registrant's Rights / Responsibility

(1) Registrants are and shall remain entitled to dispose of the Protected Domains, meaning that they may transfer, cancel, delete and/or sell the domains concerned at any time.

(2) Registrants shall be responsible for paying the costs incurred in the process of the domain registration.

(3) Subject to the provisions of Sections 9 and 10, Registrants shall be responsible for dealing with any legal disputes, notices, or correspondence received by PrivateName concerning Protected Domains with due diligence.

6. PrivateName's Services / Support

(1) Upon acknowledging and agreeing to the Terms of Service, and upon compliance with all requirements therein, PrivateName agrees to use best efforts to replace the WHOIS data of the domains of the Registrant covered by the agreement with contact data of PrivateName (unless Section 2(2) is applicable or there is any other reason why such data replacement is not possible or permitted).

(2) The contact data of the respectively responsible Partners as well as any existing domain service providers, to the extent accessible in the WHOIS, will not be altered or protected by the PrivateName Services. If stored, this data will remain accessible, as before, via the respective WHOIS databases.

(3) Any enquiries about the domains protected by the PrivateName Services shall be forwarded to the Registrant only in accordance with the rules set forth in Section 9. The full extent of PrivateName's actions in response to any such enquiry, if any, is set out in Section 9.

(4) PrivateName provides no support to Registrants whatsoever, including but not limited to any support arising from the Privacy Service. Registrants may make use of any support which may be provided by the Partner who activated the Privacy Service on the Registrant's behalf to the extent that such support is available. Under no circumstances will PrivateName be responsive to any enquiries or requests for communication or services from any Registrant directly unless such inquiry or request for support is made through the Partner in accordance with its agreement with PrivateName.

7. Compensation / Mode of Payment

(1) Registrants undertake to pay compensation to the respective Partners from whom they obtain the PrivateName Services for each domain covered by the Terms of Service and protected by PrivateName Services, according to the Partner's applicable fee schedule at the time of activation of the Privacy Service and in accordance with the method of payment as determined by the Partner. Registration fees for domain names are in addition to fees in respect of the Privacy Services, and may also be payable by the Registrant to the Partner.

(2) The Partner used by the Registrant to activate the PrivateName Services shall inform the Registrant of all applicable fees in respect of the Privacy Services and the method of payment for same, in writing prior to activation of the Privacy Services.

(3) The Registrant shall be obliged to pay compensation for the PrivateName Services from the day of activating the Services up to and including the day of deactivating the Services, unless otherwise provided in the present terms of service.

8. Term / Termination / Legal Consequences

(1) These Terms of Service shall be effective upon the activation of a domain name for Privacy Services and upon the payment of all applicable fees.

(2) The Terms of Service shall be deemed terminated even without express notice of termination if a Protected Domain is not renewed by the Registrant after the end of its registration period or if the domain is cancelled, deleted or transferred to a different holder, Partner or registrar before the end of its registration period.

(3) PrivateName shall be entitled to terminate the usage agreement if:

a) the Registrant, fails to pay the fees due under Section 7 or any fees incurred on the basis of the present Terms of Service; or
b) the Registrant breaches Section 4 of the Terms of Service; or
c) the Registrant breaches any other provisions of the Terms of Service or any other contractual provisions between the Registrant and the Partner; or
d) due to a final decision issued by a court of law or due to the outcome of arbitration proceedings, e.g. following the Uniform Domain Name Dispute Resolution Policy (UDRP), Protected Domains is/are to be transferred to a third party or the registration is to be cancelled; or
e) the performance of the Privacy Services hereunder become frustrated due to policies, laws, or regulations; or
f) any information provided by the Registrant to PrivateName is incorrect or the Registrant fails to maintain the accuracy of all submitted information; or
g) there is any other reason in PrivateName's sole, unfettered, and/or arbitrary discretion; or
h) upon 10 days' written notice to the Registrant.

(4) In the event of termination except for termination pursuant to Section 8.3(g), PrivateName will not refund any (pro rata) fees already paid.

(5) In the event of termination or any other way of cancelling the agreement, the WHOIS data of the domains concerned and of the contracting party's entire portfolio of domains, as the case may be, shall immediately be restored to its former unprotected state, with the result that the Registrant's current personal data will again, or for the first time, be published in the WHOIS.

9. Forwarding Mail Items and E-Mails / Enquiries about Protected Domains

(1) Any mail items concerning Protected Domains received by PrivateName directly from third parties will be opened, scanned and sent via e-mail to the Registrant by PrivateName within ten (10) days of receipt by PrivateName. The Registrant's e-mail inbox shall be capable of receiving e-mails with bulky attachments. The Registrant expressly agrees to PrivateName opening and electronically storing mail items addressed to or in connection with a Registrant, for the purposes of fulfilling this Section.

(2) Notwithstanding any provision in here to the contrary, any registered mail items or mail items formally delivered and/or served by courier and/or bailiff or other official, as well as any letters clearly identifiable on their envelope as coming from a lawyer, an authority, or a court of law, shall be processed subject to the provisions of section 10.

(3) Any electronic communication received by PrivateName with regard to Protected Domains will be forwarded to the e-mail address currently known to the registrar for the Registrant of the domain concerned within ten (10) days of PrivateName's receipt of same.

(4) Any enquiries about Protected Domains received by PrivateName via the contact form available on the web site www.privatename.com will be provided with a header and forwarded to the e-mail address of the Registrant currently known to the registrar by PrivateName.

(5) Any enquiries received by the respective Partners or the domain service providers (See Section 6(2)) shall not be the responsibility of PrivateName whatsoever, and may be subject to such fees and/or arrangements which may exist between the Registrant and the Partner or service provider, as may be applicable.

(6) The forwarding of documents except those transmitted via the contact form, may be subject to a cost recovery fee unless explicitly otherwise agreed.

(7) The Registrant acknowledges that PrivateName is not required to, and may not read any correspondence in any format whether hard copy or electronic, and any deadline set out in any such correspondence for a reply may not be met due to PrivateName's aforementioned policy of only forwarding such correspondence within the aforementioned ten (10) day period.

10. Notices of Pending or Threatened Legal Proceedings and/or Allegations of Unlawful Conduct

(1) Any registered mail items or mail items formally delivered and/or served by courier and/or bailiff or other official, as well as any letters from authorities or courts of law, and without limiting the generality of the foregoing, any such items which sets out that the Registrant is accused, charged, or has been found liable or guilty of any unlawful and/or criminal conduct related to a Protected Domain or otherwise, shall be subject to the below provisions in this Section.

(2) Any allegation of infringement of third party rights or of other unlawful or criminal conduct are grounds for immediate termination of the Privacy Service in the sole unfettered discretion of PrivateName.

(3) Should any third parties make allegations of unlawful or criminal conduct or assert any claims related to Protected Domains PrivateName will forward the related correspondence to the Registrant via e-mail according to Section 9 and in so doing, such correspondence shall be considered delivered to the Registrant whether or not actually received by the Registrant.

(4) In the event of correspondence received in all cases listed in Section 10(1), PrivateName will disclose the Registrant's personal data to the entity making the enquiry and the termination provisions set out in Section 8(3) may apply.

(5) PrivateName shall in no case be obliged to check or monitor the registration and/or use of Protected Domain names.

11. Data Privacy / Data Transfer / Information

(1) PrivateName will collect and store the personal data mentioned in Section 2(1) (the "Registrant's data") in accordance with its Privacy Policy. PrivateName staff may at any time review and, if necessary, modify this personal data for a specific purpose due to one of the reasons set forth in Sections 9 and 10.

(2) On the basis of the Registrar Data Escrow (RDE) Regulations, PrivateName might be bound to transfer registry data for certain TLDs to escrow holders for purposes of data backup.

(3) For reasons of contract management as well as billing purposes, the personal data will be stored in the internal PrivateName system and attributed to the respective domain(s) the Registrant activated PrivateName Services for.

(4) The Partners will receive certain data from PrivateName solely for purposes of contract management and billing and may receive notice of termination of the Privacy Service and the reason for same.

(5) Any enquiries about Protected Domains received directly by the respective Partners, however, will be forwarded to PrivateName by the latter, and may be stored by PrivateName.

(6) Except as provided in the Terms of Service, PrivateName will not disclose any Registrant's personal data to third parties other than with the Registrant's consent. PrivateName may in its discretion, abide by all court orders no matter the originating jurisdiction and may cooperate in all criminal investigations or proceedings without regard to the originating jurisdiction. PrivateName will promptly advise the Registrant of all instances of intended or actual release of its personal information to a third party unless PrivateName is prohibited from informing the Registrant due to legal provisions, official orders, restraining orders, or judgments of a court of British Columbia or any other court of competent jurisdiction as determined by PrivateName in its sole unfettered discretion. In any such case, PrivateName will inform the Registrant as soon as the legal impediment ceases to exist.

(7) In the event of termination of the Privacy Services and/or of the Terms of Service, PrivateName shall be entitled, by means of data modification, to transmit the Registrant's current personal data with the responsible registrar to the respective WHOIS database, so as to replace the PrivateName data with the Registrant's data.

12. Liability

The Registrant agrees to defend, indemnify and hold PrivateName, its employees, officers, directors, shareholders, agents, affiliates, Partners, and assigns, harmless from and against any and all third party claims, damages, liabilities, costs and expenses (including reasonable legal fees and expenses) directly or indirectly arising out of or from or relating to your agreement to engage PrivateName to provide Privacy Services and the provision of Privacy Services hereunder. EXCEPT FOR LIABILITY ARISING FROM GROSS NEGLIGENCE OR WILLFUL MISCONDUCT BY PRIVATENAME, NEITHER PRIVATENAME, ITS EMPLOYEES, OFFICERS, DIRECTORS, SHAREHOLDERS, AGENTS, AFFILIATES, RESELLERS, AND ASSIGNS, WILL BE LIABLE FOR ANY LOST REVENUES OR PROFITS OR COSTS OF PROCUREMENT OF SUBSTITUTE SERVICES, OR FOR ANY INDIRECT, SPECIAL, INCIDENTAL, EXEMPLARY, PUNITIVE OR CONSEQUENTIAL DAMAGES, INCLUDING DAMAGES FOR LOSS OF A DOMAIN NAME, OR LOSS OF PROFITS, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, INCLUDING BUT NOT LIMITED TO CONTRACT, PRODUCTS LIABILITY, STRICT LIABILITY AND NEGLIGENCE, AND WHETHER OR NOT PRIVATENAME WAS OR SHOULD HAVE BEEN AWARE OR ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. IN NO EVENT WILL PRIVATENAME'S LIABILITY ARISING OUT OF THIS AGREEMENT EXCEED THE NET AMOUNT PAYABLE TO YOU UNDER THIS AGREEMENT, NAMELY ALL SERVICE FEES PAID IN RESPECT OF A PARTICULAR DOMAIN NAME

13. Miscellaneous

(1) This Agreement will not be construed to create a partnership, joint venture, agency or employment relationship between the Registrant and PrivateName. Neither party will have the right or authority to create any obligation or responsibility on the other's behalf or to obligate or bind the other in any respect.

(2) PrivateName shall not be liable hereunder by reason of any failure or delay in the performance of its obligations on account of Internet connectivity, server malfunctions, strikes, lock-outs, labour disputes, shortages of materials, riots, insurrection, fires, flood, storm, explosions, earthquakes, hurricanes, blizzards, other acts of God, war, governmental action, or any other cause that is beyond the reasonable control of such PrivateName.

(3) This Agreement shall be governed by and construed in accordance with the laws of the Province of British Columbia and the laws of Canada applicable therein, and the parties hereby irrevocably and exclusively attorn to the jurisdiction of the courts of British Columbia at Vancouver. Notwithstanding the foregoing, in PrivateName's sole unfettered, and/or arbitrary, discretion, it may require that any such dispute be adjudicated by the courts of the jurisdiction of the Registrant.

(4) Any notice to be given under this Agreement to the Registrant, shall be in writing and shall be deemed delivered if delivered by e-mail to the Registrant's email address as provided to PrivateName during the activation process. Any notice to be given under this Agreement to PrivateName, shall be in writing and shall be deemed delivered if delivered to PrivateName by registered mail.

(5) The Registrant may not assign this Agreement, in whole or in part, by operation of law or otherwise, without the prior written consent of PrivateName.

(6) This Agreement and the attached schedules constitute the entire agreement between the parties to this Agreement pertaining to the subject matter hereof and supersede all prior and contemporaneous agreements, understandings, negotiations and discussions, whether oral or written, of the parties and there are no warranties, representations or other agreements between the parties in connection with the subject matter of this Agreement except as specifically set forth herein.

(7) Any provisions of this Agreement which are or may be rendered invalid, unenforceable or illegal, shall be ineffective only to the extent of such invalidity, unenforceability or illegality, without affecting the validity, enforceability or legality of the remaining provisions of this Agreement, it being the intent and purpose that this Agreement should survive and be valid to the maximum extent permitted by applicable law.

(8) No consent or waiver, express or implied, by a party of any breach or default by the other party in the performance of such other party of its obligations shall be deemed or construed to be a consent or waiver to or of any other breach or default in the performance by such other party of the same or any other obligations under this Agreement of such other party. Failure on the part of a party to complain of any act or failure to act of another party or to declare another party in default, irrespective of how long such failure continues, shall not constitute a waiver by the first mentioned party of its rights under this Agreement. The remedies specified in this Agreement are in addition to any other remedies that may be available at law or in equity.

Schedule B

Fee Schedule of Privacy Service

Service	One-time fee
1. Signed confirmation of domain ownership	**10,00 €**
2. Setup of Privacy Service per account/subaccount	**Free of charge**
3. Activation of Privacy Service per domain	**Free of charge**
4. Forwarding of inquiries received electronically	**Free of charge**
5. Forwarding of inquiries received physically	**Free of charge**
6. Legally imposed disclosure of domain ownership	**Free of charge**

All prices are net, exclude legal VAT and are listed in Euro.